

# Newborn Medical Contractual Liability Insurance Policy Declarations Page

**This Policy provides limited contractual liability reimbursement indemnity and should not be considered basic hospital or major medical health insurance coverage. Unless otherwise agreed, this Policy shall be considered excess to any known or existing medical insurance. Indemnity hereon is only payable in excess of the Self-Insured Retention Amount.**

**IMPORTANT: THIS IS A CONTRACTUAL LIABILITY INSURANCE POLICY. THIS POLICY IS NOT HEALTH INSURANCE, IS NOT AN AFFORDABLE CARE ACT ("ACA") PLAN, AND DOES NOT PROVIDE MINIMUM ESSENTIAL COVERAGE. THIS POLICY PROVIDES EXCESS COVERAGE ONLY AND RESPONDS SOLELY IN EXCESS OF THE INSURED INTENDED PARENT(S)' ESSENTIAL HEALTH INSURANCE PLAN.**

**Policy Number:**

<<Policy Number>>

**Producer:**

Meredith Hunter  
Stealth Partner Group, LLC, an Amwins Company  
18700 N. Hayden Rd. Suite 405, Scottsdale, AZ 85255

## Insured Information:

- 1. Named Insured:** <<Named Insured Address>>
- 2. Policy Mailing Address:** <<Named Insured Address>>  
<<Insured City>>, <<Insured State>> <<Insured Zip Code>>
- 3. Issue State:** <<State>>
- 4. Date of Transfer:** <<Transfer Date>>

**5. Eligibility:**

For a Newborn to be eligible for coverage available under this Policy the Surrogate must meet the qualifications shown below. All benefits and limits are stated per Newborn. We maintain the right to investigate eligibility or records to verify that the eligibility requirements have been met. If We discover that the eligibility requirements have not been met, our only obligation is to refund premium.

Persons for whom coverage is prohibited under applicable law will not be considered eligible under this plan.

The Surrogate is required to meet the following criteria:

- Be between the ages of 20 – 40 at the date of transfer.
- Have a BMI of 33 or less.
- Have had at least one previous healthy birth; and
- No prior history of:
  - Preterm labor prior to week 37 gestation.
  - Pre-eclampsia or eclampsia
  - Placental abruption
  - Placenta previa
  - Miscarriage beyond 16 weeks gestation
  - Gestational diabetes requiring hospitalization
  - Diabetes
- The Surrogate can only have had a maximum of:
  - Three (3) Caesarean-sections prior to the applicable Contract;
  - Five (5) pregnancies prior to the applicable Contract; and/or
  - No deliveries within the last nine (9) months from date of application

Insured Intended Parent(s) understand and agree that the coverage applies to singleton Pregnancies only, and they must enroll for the product between twelve (12) and sixteen (16) weeks gestation. Pregnancies of twins or greater are not eligible for coverage. Intended Parents understand and agree that if they do not enroll for the product between twelve (12) and sixteen (16) weeks gestation that they will not be eligible for the product.

**6. Benefit Details:**

This Insurance is to indemnify the Insured Intended Parent(s) up to the Limit of Liability stated in the Declarations for their liability assumed under Contract to pay medical expenses incurred related to the Newborn during the Coverage Period.

It is a condition precedent to coverage hereon that: (i) the Contract that is the subject of this insurance is confirmed in writing at the Effective Date and remains in force for the duration of the Coverage Period; (ii) All Medically Necessary Newborn related medical services are coordinated and Pre-Certified by the Administrator; (iii) Insured Intended Parent(s) also understand and agree that they must be actively enrolled in an Essential Health Insurance Plan that provides minimum essential coverage per the requirements of the Patient Protection and Affordable Care Act at the time of Childbirth and through the Coverage Period enumerated in the Declarations to be eligible for coverage; (iv) Insured Intended Parent(s) acknowledge, understand, and attest that this Policy is a contractual liability insurance product providing indemnity solely for the Insured Intended Parent(s)' contractual obligation to pay Newborn medical expenses, that this Policy operates as excess and secondary coverage to an Essential Health Insurance Plan compliant with the Patient Protection and Affordable Care Act, and that this Policy does not constitute health insurance, major medical coverage, or minimum essential coverage under federal or state law.

**Self-Insured Retention** Insured Intended Parent(s) understand and agree to be responsible for payment of the Self-Insured Retention as enumerated in the Declarations, which is intended to fund covered

Newborn medical expenses and must be exhausted before any Policy benefits are payable.

Upon receipt of a completed submission accepted by Us or the Administrator and as a warranty and condition for coverage hereon to be affected, the applicable Self-Insured Retention Amount, as stated below, must be deposited in full by the Insured Intended Parent(s) into a designated escrow trust account.

**\$6,700.00** for singleton Newborn (Per Newborn, Per Surrogate)

#### Self-Insured Retention Amount

The Insured Intended Parent(s) may receive Medically Necessary covered medical services from any Provider appropriate for their Newborn, either in-network or out-of-network, provided medical services are coordinated and Pre-Certified by the Administrator. Any indemnity provided by this Policy is subject to the conditions herein.

#### Territory

Costs or expenses incurred only in the 48-state contiguous mainland United States of America, including the District of Columbia.

#### Limits of Liability

Maximum: Up to **\$500,000.00** (Combined Single Limit, any one Newborn).

#### Coverage Period

The period beginning from the moment of Childbirth to sixty (60) consecutive days from the date of Childbirth.

#### Gestational Surrogate Medical Coverage

None

Insured Intended Parent(s) understand and agree to assume liability for payment of any Newborn medical expenses not indemnified under this Policy. These charges are in addition to the Insured Intended Parent(s) agreed Self-Insured Retention Amount and may be Balance Billed to the Insured Intended Parent(s).

#### 1. Policy Period:

From: <<Policy Eff Date>> To: <<Policy Exp Date>>

At 12:01 A.M. (Standard Time) at the Insured Mailing Address shown in item 2 above.

#### 2. Limit of Liability:

**\$500,000** Policy Limit of Liability per Occurrence

#### 3. The Company:

Convex Insurance UK Limited, 52 Lime Street, London, EC3M 7AF, UK

#### Premium:

##### Premium:

<<gross premium rate>>

Gross premium is due at inception.

##### Policy Administration Fee:

\$1,000.00

##### Total Amount Due:

<<Total amount due>>

Amount excludes all surplus lines taxes, surplus lines fees, surcharges, and assessments

These Declarations, together with the completed and signed application for this policy, all materials submitted therewith or made a part thereof and the policy form attached hereto, constitute the Policy.

Authorized Representative



Signed By:

A handwritten signature in black ink, appearing to read "SD", written over a horizontal line.

Name:

Steven Durany

Title:

Head of Accident & Health

SPECIMEN

The Company has granted Convex North America Insurance Services LLC ("Convex US") binding authority in issuing and signing this Policy on its behalf and in the management and administration of the same. Convex US hereby signs this Policy by its Chief Executive Officer.

Chief Executive Officer



Dan Kumpf

**Convex North America Insurance Services LLC**

47 Hulfish St., Suite 310, Princeton NJ 08542

[us.convexin.com](https://us.convexin.com)

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